

# SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 1

☐ COMMITTEE AMENDMENT

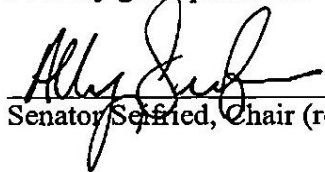
(Date)

I move to amend House Bill No. 2017 by substituting the attached floor substitute (Request # 4011) for the title, enacting clause, and entire body of the measure.

Submitted by:

  
Senator Seifried

I hereby grant permission for the floor substitute to be adopted.

  
Senator Seifried, Chair (required)

Senator Jech

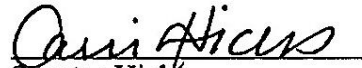
  
Senator Boren

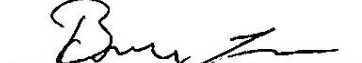
Senator Bullard

Senator Gillespie

Senator Paxton, President Pro Tempore

  
Senator Gollihare

  
Senator Hicks

  
Senator Logan

Senator Rosino

Senator Daniels, Majority Floor Leader

Note: Technology and Telecommunications committee majority requires five (5) members' signatures.

Seifried-TEK-FS-HB2017  
4/29/2026 4:27 PM

(Floor Amendments Only)

Date and Time Filed: 4.29.26 6:12pmJD

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE

FOR ENGROSSED

HOUSE BILL NO. 2017

By: Pae and Dollens of the  
House

and

Seifried of the Senate

FLOOR SUBSTITUTE

[ electronic communications - constitutional and  
lawful applicability - incidents of bullying -  
anonymous reports - immunity - notification - policy  
- notice of hearing - report - effective date ]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 813, as  
amended by Section 44, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,  
Section 813), is amended to read as follows:

Section 813. Every person who willfully, in any manner,  
~~advises, encourages, abets,~~ or assists another person in taking his  
or her own life, is guilty of aiding suicide, a Class B1 felony  
offense.

1       SECTION 2.       AMENDATORY       21 O.S. 2021, Section 1172, as  
2 amended by Section 404, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
3 2025, Section 1172), is amended to read as follows:

4       Section 1172. A. It shall be unlawful for a person ~~who, by~~  
5 ~~means of a telecommunication or other electronic communication~~  
6 ~~device, willfully either~~ to knowingly terrify, intimidate, threaten,  
7 or harass a specific person by:

8       1. ~~Makes~~ Directing any comment, request, suggestion, or  
9 proposal which is obscene, lewd, lascivious, filthy, or indecent to  
10 such person;

11       2. ~~Makes~~ Making a telecommunication or other electronic  
12 communication including text, sound, or images with intent to  
13 terrify, intimidate or harass, or threaten to inflict injury or  
14 physical harm to ~~any~~ such person or property of ~~that~~ such person;

15       3. ~~Makes~~ Making a telecommunication or other electronic  
16 communication, whether or not conversation ensues, with intent to  
17 put the ~~party~~ person called in fear of physical harm or death;

18       4. ~~Makes a telecommunication or other electronic communication,~~  
19 ~~including text, sound or images whether or not conversation ensues,~~  
20 ~~without disclosing the identity of the person making the call or~~  
21 ~~communication and~~ Disturbing by repeated, unwanted, or unsolicited  
22 electronic communications with intent to annoy, abuse, threaten, or  
23 harass ~~any~~ the person at the ~~called number~~ location where the  
24 communication was received;

1        5. Knowingly ~~permits~~ permitting any telecommunication or other  
2 electronic communication under the control of the person to be used  
3 for any purpose prohibited by this section; and

4        6. In conspiracy or concerted action with other persons, ~~makes~~  
5 making repeated calls or electronic communications or simultaneous  
6 calls or electronic communications solely to harass any person at  
7 the called ~~number(s)~~ number or numbers.

8        B. As used in this section, "telecommunication" and "electronic  
9 communication" mean any type of telephonic, electronic, or radio  
10 communications, or transmission of signs, signals, data, writings,  
11 images and sounds, or intelligence of any nature by telephone,  
12 including cellular telephones, wire, cable, radio, electromagnetic,  
13 photoelectronic, or photo-optical system or the creation, display,  
14 management, storage, processing, transmission, or distribution of  
15 images, text, voice, video, or data by wire, cable, or wireless  
16 means, including the Internet. The term includes:

17        1. A communication initiated by electronic mail, instant  
18 message, network call, or facsimile machine including text, sound, or  
19 or images;

20        2. A communication made to a pager; or

21        3. A communication including text, sound, or images posted to a  
22 social media or other public media source that is directed at a  
23 specific person.

1 C. Use of a telephone or other electronic communications  
2 facility under this section shall include all use made of such a  
3 facility between the points of origin and reception. Any offense  
4 under this section is a continuing offense and shall be deemed to  
5 have been committed at either the place of origin or the place of  
6 reception.

7 D. Except as provided in subsection E of this section, any  
8 person who is convicted of any of the provisions of subsection A of  
9 this section, shall be guilty of a misdemeanor.

10 E. Any person who is convicted of a second offense under this  
11 section shall be guilty of a Class D1 felony offense and shall be  
12 punished by imprisonment as provided for in subsections B through F  
13 of Section 20N of this title.

14 SECTION 3. AMENDATORY 21 O.S. 2021, Section 1953, as  
15 amended by Section 260, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
16 2025, Section 1953), is amended to read as follows:

17 Section 1953. A. It shall be unlawful to:

18 1. Willfully, and without authorization, gain or attempt to  
19 gain access to and damage, modify, alter, delete, destroy, copy,  
20 make use of, use malicious computer programs on, disclose or take  
21 possession of a computer, computer system, computer network, data or  
22 any other property;

23 2. Use a computer, computer system, computer network or any  
24 other property as hereinbefore defined for the purpose of devising

1 or executing a scheme or artifice with the intent to defraud,  
2 deceive, extort or for the purpose of controlling or obtaining  
3 money, property, data, services or other thing of value by means of  
4 a false or fraudulent pretense or representation;

5 3. Willfully exceed the limits of authorization and damage,  
6 modify, alter, destroy, copy, delete, disclose or take possession of  
7 a computer, computer system, computer network, data or any other  
8 property;

9 4. Willfully and without authorization, gain or attempt to gain  
10 access to a computer, computer system, computer network, data or any  
11 other property;

12 5. Willfully and without authorization use or cause to be used  
13 computer services;

14 6. Willfully and without authorization disrupt or cause the  
15 disruption of computer services or deny or cause the denial of  
16 access or other computer services to an authorized user of a  
17 computer, computer system or computer network, other than an  
18 authorized entity acting for a legitimate business purpose with the  
19 effective consent of the owner;

20 7. Willfully and without authorization provide or assist in  
21 providing a means of accessing a computer, computer system, data or  
22 computer network in violation of this section;

23

24

1        8. Willfully use a computer, computer system, ~~or~~ computer  
2 network, or other electronic device or system to ~~annoy, abuse,~~  
3 threaten, or harass another person;

4        9. Willfully use a computer, computer system, ~~or~~ computer  
5 network, or other electronic device or system to put another person  
6 in fear of physical harm or death; and

7        10. Willfully solicit another, regardless of any financial  
8 consideration or exchange of property, of any acts described in  
9 paragraphs 1 through 9 of this subsection.

10       B. Any person convicted of violating paragraph 1, 2, 3, 6, 7, 9  
11 or 10 of subsection A of this section shall be guilty of a Class C2  
12 felony offense punishable as provided in Section 1955 of this title.

13       C. Any person convicted of violating paragraph 4, 5 or 8 of  
14 subsection A of this section shall be guilty of a misdemeanor.

15       D. Nothing in the Oklahoma Computer Crimes Act shall be  
16 construed to prohibit the monitoring of computer usage of, or the  
17 denial of computer or Internet access to, a child by a parent, legal  
18 guardian, legal custodian, or foster parent. As used in this  
19 subsection, "child" shall mean any person less than eighteen (18)  
20 years of age.

21       E. Nothing in the Oklahoma Computer Crimes Act shall be  
22 construed to prohibit testing by an authorized entity, the purpose  
23 of which is to provide to the owner or operator of the computer,  
24 computer system or computer network an evaluation of the security of

1 the computer, computer system or computer network against real or  
2 imagined threats or harms.

3 F. Nothing in the Oklahoma Computer Crimes Act shall be  
4 construed to apply to constitutionally protected speech or activity  
5 or to any other activity authorized by law.

6 SECTION 4. AMENDATORY 70 O.S. 2021, Section 24-100.3, is  
7 amended to read as follows:

8 Section 24-100.3. A. As used in the School Safety and Bullying  
9 Prevention Act:

10 1. "Bullying" means any pattern of harassment, intimidation,  
11 threatening behavior, physical acts, or verbal or electronic  
12 communication directed toward a student or group of students that  
13 results in or is reasonably perceived as being done with the intent  
14 to cause negative educational or physical results for the targeted  
15 individual or group and is communicated in such a way as to disrupt  
16 or interfere with the school's educational mission or the education  
17 of any student;

18 2. ~~"At school" means on school grounds, in school vehicles, at~~  
19 ~~school-sponsored activities, or at school-sanctioned events;~~

20 3. "Electronic communication" means the communication of any  
21 written, verbal, or pictorial information or video content by means  
22 of an electronic device, including, but not limited to, a telephone,  
23 a mobile or cellular telephone or other wireless telecommunication  
24 device, or a computer; ~~and~~



1        3. "On school premises" means on school grounds, in school  
2 vehicles, at school-sponsored activities, or at school-sanctioned  
3 events; and

4        4. "Threatening behavior" means any pattern of behavior or  
5 isolated action, whether or not it is directed at another person,  
6 that a reasonable person would believe indicates potential for  
7 future harm to students, school personnel, or school property.

8        B. Nothing in ~~this act~~ Section 24-100.2 et seq. of this title  
9 shall be construed to impose a specific liability on any school  
10 district.

11        SECTION 5.        AMENDATORY        70 O.S. 2021, Section 24-100.4, as  
12 amended by Section 6, Chapter 15, O.S.L. 2023 (70 O.S. Supp. 2025,  
13 Section 24-100.4), is amended to read as follows:

14        Section 24-100.4. A. Each public school district board of  
15 education shall adopt a policy for the discipline of all children  
16 attending public school in that district, and for the investigation  
17 of reported incidents of bullying. The policy shall provide options  
18 for the discipline of the students and shall define standards of  
19 conduct to which students are expected to conform. The policy  
20 shall:

21        1. Specifically address bullying by students ~~at school~~ on  
22 school premises and by electronic communication, if the  
23 communication is specifically directed at students or school  
24 personnel and ~~concerns bullying at school~~ disrupts or interferes

1 with the school's educational mission or the education of any  
2 student;

3 2. Contain a procedure for ~~reporting~~ a student, a school  
4 employee, a school volunteer, or a parent or legal guardian of a  
5 student to report an act of bullying to a school official or law  
6 enforcement agency, including a provision that permits a person to  
7 report an act anonymously. No formal disciplinary action shall be  
8 taken solely on the basis of an anonymous report;

9 3. Contain a requirement that any school employee that has  
10 reliable information that would lead a reasonable person to suspect  
11 that a person is a target of bullying shall immediately report it to  
12 the principal or a designee of the principal. A school employee, a  
13 school volunteer, a student, or the parent or legal guardian of a  
14 student who promptly reports in good faith an incident of bullying  
15 to a school official and who makes the report in compliance with the  
16 provisions of this section shall be immune from a cause of action  
17 for damages arising out of the reporting itself or any failure to  
18 remedy the reported incident of bullying;

19 4. Contain a statement of how the policy is to be publicized  
20 including a requirement that:

- 21 a. an annual written notice of the policy be provided to  
22 parents, legal guardians, staff, volunteers, and  
23 students, with age-appropriate language for students,  
24

b. notice of the policy be posted at various locations within each school site, including, but not limited to, cafeterias, school bulletin boards, and administration offices,

c. the policy be posted on the Internet website for the school district and each school site that has an Internet website, and

d. the policy be included in all student and employee handbooks;

5. Require that appropriate school district personnel involved in investigating reports of bullying make a determination regarding whether the conduct is actually occurring;

6. Contain a procedure and requirement for providing notification to the parent or legal guardian of the reported victim of bullying and the parent or legal guardian of the reported perpetrator of the bullying within twenty-four (24) hours of receipt of the report of bullying and providing timely notification to the ~~parents~~ parent or ~~guardians~~ legal guardian of a victim of documented and verified bullying and to the ~~parents~~ parent or ~~guardians~~ legal guardian of the perpetrator of the documented and verified bullying; provided, if a student expresses suicidal thoughts or intentions or encourages another student to commit suicide, the parent or legal guardian of the student or students shall be notified immediately;

1        7. Identify by job title the school official responsible for  
2 enforcing the policy at each school site within a school district;

3        8. Contain procedures for reporting to law enforcement all  
4 documented and verified acts of bullying which may constitute  
5 criminal activity or reasonably have the potential to endanger  
6 school safety;

7        9. Require training for administrators and school employees  
8 including school resource officers as developed and provided by the  
9 State Department of Education in preventing, identifying, responding  
10 to, and reporting incidents of bullying. The training shall be  
11 completed the first year an administrator or school employee is  
12 employed by a school district, and then once every fifth academic  
13 year thereafter;

14       10. Provide for an educational program as designed and  
15 developed by the State Department of Education and in consultation  
16 with the Office of Juvenile Affairs for students and parents in  
17 preventing, identifying, responding to, and reporting incidents of  
18 bullying;

19       11. Establish a procedure for referral of a person who commits  
20 an act of bullying to a delinquency prevention and diversion program  
21 administered by the Office of Juvenile Affairs;

22       12. Address prevention by providing:

- 23           a. consequences and remedial action for a person who  
24           commits an act of bullying,

- b. consequences and remedial action for a student found to have falsely accused another as a means of retaliation, reprisal, or as a means of bullying, and
- c. a strategy for providing counseling or referral to appropriate services, including guidance, academic intervention, and other protection for students, both targets and perpetrators, and family members affected by bullying, as necessary;

13. Establish a procedure for:

- a. the investigation, determination, and documentation of all incidents of bullying reported to school officials,
- b. identifying the principal or a designee of the principal as the person responsible for investigating incidents of bullying,
- c. reporting the number of incidents of bullying, and
- d. determining the severity of the incidents and their potential to result in future violence;

14. Establish a procedure whereby, upon completing an investigation of bullying, a school may recommend that available community mental health care, substance abuse, or other counseling options be provided to the student, if appropriate; ~~and~~

15. Establish a procedure whereby a school may request the disclosure of any information concerning students who have received

1 mental health, substance abuse, or other care pursuant to paragraph  
2 14 of this subsection that indicates an explicit threat to the  
3 safety of students or school personnel, provided the disclosure of  
4 the information does not violate the requirements and provisions of  
5 the Family Educational Rights and Privacy Act of 1974, the Health  
6 Insurance Portability and Accountability Act of 1996, Section 2503  
7 of Title 12 of the Oklahoma Statutes, Section 1376 of Title 59 of  
8 the Oklahoma Statutes, or any other state or federal laws regarding  
9 the disclosure of confidential information; and

10 16. Contain a statement prohibiting retaliation against a  
11 school employee who notifies the public school district board of  
12 education or the State Department of Education of noncompliance with  
13 the provisions of this section.

14 B. 1. In developing the policy, the public school district  
15 board of education shall ~~make an effort to~~ involve the teachers,  
16 parents, administrators, school staff, school volunteers, community  
17 representatives, local law enforcement agencies, and students.

18 2. Before adopting the policy required by this section or any  
19 modifications to the policy, the board of education shall hold at  
20 least one public hearing on the proposed policy or modifications to  
21 the policy. The public hearing may be held as part of a regularly  
22 scheduled board meeting. The board of education shall provide  
23 notice of the public hearing to students and the parents or legal  
24 guardians of students by posting such notice on social media and

1 through at least one other communication method regularly used by  
2 the board of education.

3 3. Within thirty (30) days of approving the policy required by  
4 this section or any modifications, the board of education shall  
5 electronically submit a copy to the State Department of Education.

6 4. The students, teachers, and parents or ~~guardian~~ legal  
7 guardians of every child residing within a school district shall be  
8 notified by the ~~district~~ board of education of its adoption of the  
9 policy and shall receive a copy upon request. The ~~school district~~  
10 policy shall be implemented in a manner that is ongoing throughout  
11 the school year and is integrated with other violence prevention  
12 efforts.

13 C. The teacher of a child attending a public school shall have  
14 the same right as a parent or legal guardian to control and  
15 discipline such child according to district policies during the time  
16 the child is in attendance or in transit to or from the school or  
17 any other school function authorized by the school district or  
18 classroom presided over by the teacher.

19 D. Except concerning students on individualized education ~~plans~~  
20 programs (IEP) pursuant to the Individuals with Disabilities  
21 Education Act (IDEA), P.L. No. 101-476, the State Board of Education  
22 shall not have authority to prescribe student disciplinary policies  
23 for public school districts or to proscribe corporal punishment in  
24 the public schools. The State Board of Education shall not have

1 authority to require school districts to file student disciplinary  
2 action reports more often than once each year and shall not use  
3 disciplinary action reports in determining a school district's or  
4 school site's eligibility for program assistance including  
5 competitive grants.

6 E. The board of education of each public school district in  
7 this state shall have the option of adopting a dress code for  
8 students enrolled in the school district. The board of education of  
9 a school district shall also have the option of adopting a dress  
10 code which includes school uniforms.

11 F. The board of education of each public school district in  
12 this state shall have the option of adopting a procedure that  
13 requires students to perform campus-site service for violating the  
14 district's policy.

15 G. The State Board of Education shall:

16 1. Promulgate rules for periodically monitoring public school  
17 districts for compliance with this section and providing sanctions  
18 for noncompliance with this section;

19 2. Establish and maintain a central repository for the  
20 collection of information regarding documented and verified  
21 incidents of bullying; and

22 3. Publish a report annually on the State Department of  
23 Education website regarding the number of documented and verified  
24 incidents of bullying in the public schools in the state.



SECTION 6. This act shall become effective November 1, 2026.

60-2-4011 TEK 4/29/2026 6:53:09 PM